IN THE SUPREME COURT OF THE STATE OF NEBRASKA

STATE OF NEBRASKA ex rel., JOHN THOMAS JEFFREY KING, GREGORY SPUNG, JEREMY JONAK, and CIVIC NEBRASKA,

Relators,

v.

ROBERT EVNEN, in his official capacity as Nebraska Secretary of State, BRIAN W. KRUSE, in his official capacity as Douglas County Election Commissioner, and TRACY OVERSTREET, in her official capacity as Hall County Election Commissioner,

Respondents.

Case No. 24-_____

APPLICATION FOR LEAVE TO COMMENCE AN ORIGINAL ACTION

COMES NOW Relators John Thomas Jeffrey King ("King"), Gregory Spung ("Spung"), Jeremy Jonak ("Jonak"), and Civic Nebraska, requesting leave of the Court to commence an original action, pursuant to Neb. Ct. R. App. P. § 2-115, as set forth in the Verified Petition for Writ of Mandamus attached hereto. This Application for Leave to Commence an Original Action sets forth the basis of the Court's jurisdiction and the reasons it is necessary to commence the action in this Court. In support of this application, Relators state as follows:

INTRODUCTION

1. Relators bring this action, a Verified Petition for Writ of Mandamus attached as "Attachment A" and incorporated by reference as if fully set forth herein, to compel the Respondents Secretary of State Robert Evnen ("Secretary Evnen"), Douglas County Election

Commissioner Brian Kruse ("Commissioner Kruse"), and Hall County Election Commissioners Tracy Overstreet ("Commissioner Overstreet") to comply with established Nebraska election law less than four months before a presidential election.

2. Earlier this year, a bipartisan coalition of lawmakers passed legislation re-enfranchising thousands of Nebraskans. Legis. B. 20, 108th Leg., 2d. Sess. (Neb. 2024). Leading up to the vote, legislators weighed committee hearing testimony, engaged in extensive debate, and fielded calls and emails from constituents. Under the new law—Legislative Bill 20 (L.B. 20) codified at Neb. Rev. Stat. §§ 29-112, 29-113, 32-313, 32-1530, 29-2264, 32-312, and 83-1,118 (hereinafter referred to as the "Re-enfranchisement Statutes")—Nebraskans who have been convicted of a felony offense can register to vote without delay after completing the terms of their sentence, including incarceration and any parole or probation. *See* Neb. Rev. Stat. §§ 29-112, 29-113, 32-313, 32-1530, 29-2264, 32-312, 83-1,118.

3. The legislature's authority to restore voting rights in this way was longstanding; in 2005, the legislature passed Legislative Bill 53 (L.B. 53), which automatically restored voting rights to all Nebraskans two years after the completion of their felony sentence. Legis. B. 53, 99th Leg., 1st Sess. (Neb. 2005). L.B. 20 follows this sound practice and simply removed the two-year waiting period in L.B. 53, aligning Nebraska's voting procedures with the vast majority of other states around the country, where people with felony convictions who have completed all terms of their sentences may register to vote. *See* Alaska Stat. § 15.05.030(a); Ark. Const. amend. LI, § 11(d)(2)(A-D); Cal. Const. art. II, § 4; Colo. Const. art. VII, § 10; Conn. Gen. Stat. § 9-46a(b); Ga. Const. art. II, § 1, para. III(a); Haw. Rev. Stat. § 831-2(a)(1); Idaho Code § 18-310(2); Ill. Const. art. III, § 2; Ind. Code § 3-7-13-4; Kan. Stat. Ann. § 22-3722; Md. Code Ann., Elec. Law § 3-102(b)(1); Mass. Gen. Laws ch. 51, § 1; Mich. Comp. Laws § 168.758b; Minn. Stat. § 609.165, subdiv. 1; Mo. Rev. Stat. § 115.133.2; Mont. Const. art. IV, § 2; Nev. Rev. Stat. § 213.157; N.H. Rev. Stat. Ann. § 607-A:2(I); N.J. Stat. Ann. § 19:4-1; N.M. Const. art. VII, § 1;

N.Y. Elec. Law § 5-106(2); N.C. Gen. Stat. § 13-1; N.D. Cent. Code § 12.1-33-03(1); Ohio Rev. Code Ann. § 2961.01(A)(2); Okla. Stat. tit. 26, § 4-101(1); Or. Rev. Stat. § 137.281(1); 25 Pa. Cons. Stat. § 1301(a); *Mixon v. Commonwealth*, 759 A.2d 442 (Pa. Commw. Ct. 2000); R.I. Const. art. II, § 1; S.C. Code Ann. § 7-5-120(B)(3); S.D. Codified Laws § 12-4-1.2; Tex. Elec. Code Ann. § 11.002(4)(a); Utah Code Ann. § 20A-2-101.5; Wash. Rev. Code § 29A.08.520; W. Va. Const. art. IV, § 1; Wis. Stat § 304.078(3); *see also* Me. Const. art. II, § 1; Vt. Stat. Ann. tit. 28, § 807(a); D.C. Code § 1–1001.07 (citizens never lose their voting rights on account of a felony conviction in Maine, Vermont, and the District of Columbia).

4. While Governor Jim Pillen declined to sign L.B. 20, it became law without his signature with an effective date of July 19, 2024. *See* Neb. Const. art. IV, § 15.

5. Yet two days before the law was to take effect, Attorney General Mike Hilgers released a nonbinding opinion declaring that L.B. 20 violates Article IV, section 13, of the Nebraska Constitution. *See* Attach. A, Ex. 1. The Attorney General also unilaterally announced that *no one* convicted of a felony offense—no matter how old the conviction—can lawfully vote in Nebraska without a pardon from the Board of Pardons. The Attorney General's opinion, in other words, would effectively overturn not just L.B. 20 but also L.B. 53 and two decades of rights restoration law in Nebraska. *Id.*

6. Yet the Nebraska Supreme Court has already held that voter restoration is a power of the Legislature and that "[r]estoration of the right to vote is implemented through statute." *Ways v. Shively*, 264 Neb. 250, 255, 646 N.W.2d 621, 626 (2002).

7. Secretary Evnen relied on the conclusion of the opinion and released a statement commanding local election officials to subvert L.B. 20 and L.B. 53 by rejecting all voter registrations of Nebraskans with a prior felony conviction except those voters who had received a pardon from the Board of Pardons. *See* Attach. A, Ex. 2. He then changed every voter registration form in the State of Nebraska to

conform to the Attorney General's non-binding opinion. *See* Attach. A, Ex. 6.

8. Secretary Evnen's directive is plainly violative of the fundamental separation of powers. Indeed, the Nebraska Constitution mandates that "[n]o legislative act shall be held unconstitutional except by the concurrence of five judges." Neb. Const. art. V, § 2; *see also State v. Coffman*, 213 Neb. 560, 561, 330 N.W. 2d, 727, 728 (1983) ("[A]n Attorney General's opinion . . . has no controlling authority on the state of the law discussed in it, . . . [a]n Attorney General's opinion is, simply, not a judicial utterance.").

9. Secretary Evnen's actions, taken less than four months before a presidential election, have dramatically upended two decades of settled election law and created chaos, confusion, and uncertainty in Nebraska's electoral process. Thousands of Nebraskans whose right to vote has been restored by the Legislature have been swiftly and unilaterally disenfranchised by the Secretary of State. Voters and organizations that assist with voter registration, such as Relator Civic Nebraska, are now at risk, or potential risk, of prosecution.

10. This uncertainty threatens a cornerstone of our democracy—the fundamental right to vote. Secretary Evnen's actions have already resulted in eligible voters, like Relators King, Spung, and Jonak, being unable to exercise or denied their right to register to vote.

11. In acting unilaterally, Secretary Evnen has usurped both the authority of the courts to declare what is and is not unconstitutional, as well as the power of the Legislature to make law on behalf of constituents to whom they are accountable. Instead, Secretary Evnen has unlawfully attempted to aggrandize the Board of Pardons—a board whose three members are: the Governor, Attorney General, and the Secretary himself. Neb. Const. art. IV, § 13.

12. Relators request leave of the Court to file an original action seeking (1) a writ of mandamus requiring the Secretary of State to prescribe voter registration forms which state, as required by Nebraska

statute: "[t]o the best of my knowledge and belief, I declare under penalty of election falsification that: . . . I have not been convicted of a felony; *or if convicted, I have completed my sentence for the felony, including any parole term*"; (2) a writ of mandamus requiring the Secretary of State to effectuate the automatic removal of disqualification of eligibility for electors upon completion of the terms of their felony sentence; (3) writs of mandamus ordering the Douglas County Commissioner to accept the voter registration forms from Relators King and Sprung, enter the information from their applications in the voter registration register, and send them an acknowledgement of registration to the postal address shown on the registration application; and (4) a writ of mandamus ordering the Hall County Election Commissioner to accept voter registration form from Relator Jonak, enter the information from his application in the voter registration register, and send Jonak an acknowledgement of registration to the postal address shown on the registration application.

RELATORS

13. Relators TJ King, Gregory Spung, and Jeremy Jonak are citizens of the United States. Relators King and Spung are residents of Douglas County, Nebraska. Relator Jonak is a resident of Hall County, Nebraska.

14. Relators King, Spung, and Jonak have been separately convicted of felonies and lost their right to vote under Nebraska's felony disenfranchisement laws.

15. Relators King, Spung, and Jonak have all completed their sentences related to their felony convictions and thus, under Nebraska law, their disqualification from voting should be "automatically removed" upon completion of their sentence including any parole term. Neb. Rev. Stat. §§ 29-112, 32-313.

16. Relators King, Spung, and Jonak are qualified voters under Nebraska law. Neb. Rev. Stat. §§ 32-313, 32-110.

17. Relators King, Spung, and Jonak desire to register to vote and participate in the upcoming November 2024 General Election taking place on November 5, 2024.

18. But for Secretary Evnen's and Commissioners' Kruse and Hall's refusal to comply with Nebraska law, King, Spung, and Jonak would be registered to vote.

19. Jonak has a federal conviction, which cannot be pardoned by the Nebraska Board of Pardons. *See* Neb. Const. art. IV, § 13.

20. King has out-of-state convictions, which cannot be pardoned by the Nebraska Board of Pardons and can only be pardoned by the pardon and clemency laws of the respective states. *See* Neb. Const. art. IV, § 13.

21. Relator Civic Nebraska is a nonprofit corporation organized under Nebraska law, whose mission is to create a more modern and robust democracy for all Nebraskans by, among other things, ensuring elections are nonpartisan and helping Nebraskans register to vote and vote.

22. Any person or organization which distributes voter registrations by mail is required to use the form prescribed by the Secretary of State. Neb. Rev. Stat. § 32-320.01. Secretary Evnen, however, has failed to provide legal voter registration forms as required by Nebraska law. Neb. Rev. Stat. §§ 32-312 (providing what the Secretary of State is required to include in voter registration forms), 32-321 (requiring the Secretary of State to make registration applications as prescribed by law available to any elector).

23. Anticipating the Re-enfranchisement Statutes to take effect on July 19, 2024, Civic Nebraska spent the organization's resources and staff time planning and conducting outreach to new voters informing them of the anticipated change in the law. Civic Nebraska planned to host celebration events as soon as July 20, 2024 to invite new voters to register after the Re-enfranchisement Statutes took effect.

24. Since Secretary Evnen sent his directives to election commissioners across the state to halt compliance with the Re-enfranchisement Statutes, Civic Nebraska had to immediately stop their outreach and organizing efforts to register voters impacted by the Re-enfranchisement Statutes. Civic Nebraska incurred even greater expenses and diversion of resources due to the required re-strategizing and re-organizing of their outreach efforts. Resources that would have gone to helping register new voters and inform new voters of the law to increase civic participation are now being devoted to informing Nebraskans and newly disenfranchised voters about Secretary Evnen's actions and that they could not rely on the Re-enfranchisement Statutes as expected. Civic Nebraska also had to spend resources to re-program the scheduled celebration events as opportunities for the community and impacted Nebraskans to get information on the sudden new development.

25. Civic Nebraska has also had to expend resources to research and re-strategize their communications to donors and stakeholders because their outreach and organizing plans around the Re-enfranchisement Statutes had changed unexpectedly due to Secretary Evnen's actions.

26. In the separately filed Verified Petition, Relators seek a writ of mandamus ordering Secretary Evnen to prescribe voter registration forms in compliance with Neb. Rev. Stat. § 32-312. Relators also seek a writ of mandamus ordering Respondent Evnen to effectuate the automatic removal of disqualification of eligibility for citizens who have completed the terms of their felony sentences, in compliance with Neb. Rev. Stat. §§ 32-202, 32-213. Individual Relators King and Spung also seek a writ of mandamus requiring Commissioner Kruse to accept their voter registration forms, enter the information from their applications in the voter registration register, and to send an acknowledgement of registration to the postal address shown on the registration application. Neb. Rev. Stat. §§ 32-301, 32-322. Similarly, Relator Jonak seeks a writ of mandamus requiring the Commissioner Overstreet to do the same for his voter registration application. *See id.*

JURISDICTION

27. The Court has original jurisdiction over this matter pursuant to Neb. Const. art. V, § 2 and Neb. Rev. Stat. § 24-204, as Relators seeking writs of mandamus.

28. The Secretary of State has a nondiscretionary duty to prescribe and distribute a registration application which may be used statewide to register to vote and update voter registrations. Neb. Rev. Stat. § 32-311.01. Further, the Secretary of State has a nondiscretionary duty to prescribe that form in the manner directed by the Legislature in Neb. Rev. Stat. § 32-312. Specifically, the form must state, "[t]o the best of my knowledge and belief, I declare under penalty of election falsification that: . . . I have not been convicted of a felony or if convicted, I have completed my sentence for the felony, including any parole term." Neb. Rev. Stat. § 32-312.

29. Additionally, as part of his "duties prescribed by law, the Secretary of State shall . . . [e]nforce the Election Act." Neb. Rev. Stat. § 32-202(3); *accord* Neb. Rev. Stat. §§ 32-101 to 32-1552.

30. Pursuant to the Election Act, an elector previously disqualified due to a felony conviction is eligible to vote when their "sentence is completed . . . [t]he disqualification is *automatically* removed at such time." Neb. Rev. Stat. § 32-313(1) (emphasis added). Secretary Evnen thus has a nondiscretionary duty to perform this automatic removal of disqualification for voters that have completed the terms of their felony sentence.

31. The Hall County and Douglas County Election Commissioners have a nondiscretionary duty to provide for the registration of electors of the county, to carry on voter registration at all times during business hours, to accept voter registration applications, to enter the information from a voter registration application in the voter registration register upon receipt, and to send an acknowledgment of registration to the postal address shown on the

registration application. Neb. Rev. Stat. §§ 32-301(2), 32-302, 32-311.01(1), 32-322.

32. Relators King, Spung, and Jonak are qualified voters and have a clear legal right to register as a voter in Nebraska. Neb. Rev. Stat. §§ 32-313, 32-110, 29-112, 32-313.

33. King, Spung, and Jonak have a right to register as a voter under the correct voter registration form prescribed by the Secretary of State and made available by the Douglas and Hall County Election Commissioners showing that they are a qualified voter. Neb. Rev. Stat. §§ 32-312, 32-311.01, 32-313, 32-110.

34. King, Spung, and Jonak have a right to a voter registration form that reflects Nebraska law which provides that the Secretary of State *must* prescribe a voter registration form that states: "[t]o the best of my knowledge and belief, I declare under penalty of election falsification that: . . . I have not been convicted of a felony; *or if convicted, I have completed my sentence for the felony, including any parole term.*" Neb. Rev. Stat. § 32-312, 32-311.01 (emphasis added). This statute was updated after passage of L.B. 20 was passed and is the law of Nebraska.

35. Relators King, Spung, and Jonak have no alternative remedy that adequately compels the performance of the duty of Secretary Evnen and Commissioners Kruse and Overstreet as completely and effectively as a writ of mandamus and that resolves the issue with the urgency necessary in an election year.

NECESSITY OF AN ORIGINAL ACTION

36. The November 2024 General Election and various election related deadlines are rapidly approaching. Secretary Evnen's actions jeopardize public confidence in the electoral process, infringe on thousands of individuals' right to vote less than four months out from a presidential election, and incentivize people to stay away from the polls. Many upcoming electoral deadlines, including those which

directly impact Relators, further necessitate an original action in the Supreme Court.

37. Upcoming election related deadlines include: (1) the October 18, 2024, deadline to register online or by mail to vote in the general election; (2) the October 25, 2024, deadline to register to vote in person for the general election; and (3) the October 25, 2024, deadline to request early voting ballots to be mailed. *See* Neb. Rev. Stat. §§ 32-302, 32-311.01, 32-949.01. In light of these upcoming deadlines, it would be inefficient to adjudicate this matter in the District Court of Lancaster County. With little time until the registration deadline for the general election, it might be difficult to seek appellate review from a district court decision. Other pressing election deadlines for voter registration, signature verification, and ballot certification, also warrant exercise of the Court's original jurisdiction.

38. Further, the Verified Petition presents only questions of law that require interpreting Neb. Rev. Stat. §§ 29-112, 32-313, and Neb. Const. art. V, § 2. This interpretation would inevitably fall to the Nebraska Supreme Court as the final interpreters of the Nebraska Constitution and would require a *de novo* review, even if this action was initially adjudicated in a district court.

39. This matter presents only questions of law and should stipulated facts be necessary, Relators would seek to agree with Respondents upon jointly stipulated facts.

40. This Court has previously exercised original jurisdiction in cases with similar time constraints. *See State ex rel. Wagner v. Evnen*, 307 Neb. 142, 948 N.W.2d 244 (2020) (exercising original jurisdiction with fourteen days till the certification deadline); *State ex rel. McNally v. Evnen*, 307 Neb. 103, 948 N.W.2d 463 (2020) (exercising original jurisdiction with seventeen days till the certification deadline); *State ex rel. Loontjer v. Gale*, 288 Neb. 973, 853 N.W.2d 494 (2014) (exercising original jurisdiction with forty-six days till the certification deadline).

WHEREFORE, Relators apply to this Court for leave to file their Verified Petition for Writ of Mandamus accompanying this Application, docket this case as an original action on the Supreme Court Docket, expedite proceedings as necessary, and take any other action necessary or appropriate for the commencement of said original action.

DATED this 29th day of July, 2024.

JOHN THOMAS JEFFREY KING, Relator
GREGORY SPUNG, Relator
JEREMY JONAK, Relator
CIVIC NEBRASKA, Relator,

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IN THE SUPREME COURT OF THE STATE OF NEBRASKA

STATE OF NEBRASKA ex rel., JOHN THOMAS JEFFREY KING, GREGORY SPUNG, JEREMY JONAK, and CIVIC NEBRASKA,

Relators,

v.

ROBERT EVNEN, in his official capacity as Nebraska Secretary of State, BRIAN W. KRUSE, in his official capacity as Douglas County Election Commissioner, and TRACY OVERSTREET, in her official capacity as Hall County Election Commissioner,

Respondents.

Case No. 24-_____

VERIFIED PETITION FOR WRIT OF MANDAMUS

COME NOW Relators John Thomas Jeffrey King ("TJ King"), Gregory Spung ("Spung"), Jeremy Jonak ("Jonak"), and Civic Nebraska, seeking a peremptory writ of mandamus pursuant to Neb. Rev. Stat. §§ 25-2156 to 25-2169, requiring Respondent Secretary of State Robert Evnen ("Secretary Evnen") to prescribe voter registration applications that comply with Neb. Rev. Stat. § 32-312.

Relators also seek a peremptory writ of mandamus requiring Secretary Evnen to effectuate the automatic removal of disqualification of eligibility for persons who have completed the terms of their felony sentence pursuant to Neb. Rev. Stat. §§ 32-202, 32-313.

Additionally, Relators King and Spung seek a peremptory writ of mandamus requiring Douglas County Election Commissioner Brian W. Kruse ("Commissioner Kruse") to find King and Spung to be qualified registered voters, accept their voter registration forms, enter the information from their applications in the voter registration list, and

mail them an acknowledgement of registration as required by Neb. Rev. Stat. §§ 32-301 and 32-322.

Relator Jonak seeks a peremptory writ of mandamus requiring Hall County Election Commissioner Tracy Overstreet ("Commissioner Overstreet") to find Jonak to be a qualified registered voter, accept his voter registration form, enter the information from his application in the voter registration register, and mail him an acknowledgement of registration as required by Neb. Rev. Stat. §§ 32-301, 32-322.

This petition directly concerns election matters, the outcome of which will determine Relators King, Spung, and Jonak's right to register to vote and to vote and Relator Civic Nebraska' ability to register voters in the November 2024 General Election. Relators request expedited treatment and adjudication of their petition and in support thereof allege as follows:

INTRODUCTION

1. This spring, the Nebraska Legislature passed legislation restoring voting rights to thousands of Nebraskans who have been convicted of a felony offense and completed their sentences. That legislation, Legislative Bill 20 ("L.B. 20"), reinstates Nebraskans' voting rights automatically after completion of their felony sentence, including any parole term. Legis. B. 20, 108th Leg., 2d. Sess. (Neb. 2024) ("L.B. 20"). Before it was enacted, there was a two-year waiting period after completion of the sentence before voting rights were restored; L.B. 20 removed that waiting period and is codified at Neb. Rev. Stat. §§ 29-112, 29-113, 32-313, 32-1530, 29-2264, 32-3312, and 83-1,118 (hereinafter the "Re-enfranchisement Statutes").

2. This was not the first time the Nebraska Legislature restored voting rights to Nebraskans with felony convictions through legislation. In 2005, the Nebraska Legislature passed Legislative Bill 53 ("L.B. 53") to restore voting rights automatically two years after the completion of the felony sentence, including any parole term. Legis. B. 53, 99th Leg., 1st Sess. (Neb. 2005). Consistent with this historical

practice and the legislature's authority, L.B. 20 simply removed the two-year waiting period. In doing so, it aligned Nebraska's voting procedures with the vast majority of other states that recognize that citizens who have served their time should be able to participate fully in democracy. *See* Alaska Stat. § 15.05.030(a); Ark. Const. amend. LI, § 11(d)(2)(A-D); Cal. Const. art. II, § 4; Colo. Const. art. VII, § 10; Conn. Gen. Stat. § 9-46a(b); Ga. Const. art. II, § 1, para. III(a); Haw. Rev. Stat. § 831-2(a)(1); Idaho Code § 18-310(2); Ill. Const. art. III, § 2; Ind. Code § 3-7-13-4; Kan. Stat. Ann. § 22-3722; Md. Code Ann., Elec. Law § 3-102(b)(1); Mass. Gen. Laws ch. 51, § 1; Mich. Comp. Laws § 168.758b; Minn. Stat. § 609.165, subdiv. 1; Mo. Rev. Stat. § 115.133.2; Mont. Const. art. IV, § 2; Nev. Rev. Stat. § 213.157; N.H. Rev. Stat. Ann. § 607-A:2(I); N.J. Stat. Ann. § 19:4-1; N.M. Const. art. VII, § 1; N.Y. Elec. Law § 5-106(2); N.C. Gen. Stat. § 13-1; N.D. Cent. Code § 12.1-33-03(1); Ohio Rev. Code Ann. § 2961.01(A)(2); Okla. Stat. tit. 26, § 4-101(1); Or. Rev. Stat. § 137.281(1); 25 Pa. Cons. Stat. § 1301(a); *Mixon v. Commonwealth*, 759 A.2d 442 (Pa. Commw. Ct. 2000); R.I. Const. art. II, § 1; S.C. Code Ann. § 7-5-120(B)(3); S.D. Codified Laws § 12-4-1.2; Tex. Elec. Code Ann. § 11.002(4)(a); Utah Code Ann. § 20A-2-101.5; Wash. Rev. Code § 29A.08.520; W. Va. Const. art. IV, § 1; Wis. Stat § 304.078(3).

3. Many Nebraskans, including Relators TJ King, Gregory Spung, and Jeremy Jonak, became eligible to vote after the law took effect on July 19, 2024. Relator Civic Nebraska relied on the law and expected the organization would be able to distribute voter registration forms and assist in voter registration efforts to voters re-enfranchised by the Re-enfranchisement Statutes.

4. Then, just two days before the legislation was to take effect, on July 17, 2024, Attorney General Michael Hilgers published a nonbinding opinion stating that the Re-enfranchisement Statutes unconstitutionally violate separation of powers principles because the power to restore voting rights to Nebraskans with felony convictions is purportedly vested exclusively in the Board of Pardons, which is

housed in the Executive Branch. A copy of Attorney General Hilgers's opinion is attached as Exhibit 1.

5. That same day, immediately after the nonbinding opinion was published, Secretary Evnen issued a press release indicating he was treating the opinion as binding law and had ordered local election officials to refuse the voter registrations of any person with a prior felony conviction unless they have been restored to their civil rights by the Board of Pardons. A copy of Secretary Evnen's Press release is attached as Exhibit 2 and a copy of Secretary Evnen's directive to election officials is attached as Exhibit 3.

6. The Secretary's interpretation, in other words, is that the Attorney General has the unilateral authority to: (1) invalidate L.B. 20 and the rights restoration statutes that have been on the books since 2005, and (2) refuse to comply with duly enacted Nebraska statutes. That remarkable, unprecedented, and unlawful action prompts this lawsuit.

7. This case is about the fundamental right to vote, a cornerstone of our democracy. "No right is more precious in a free country than that of having a voice in the election of those who make the laws under which, as good citizens, we must live. Other rights, even the most basic, are illusory if the right to vote is undermined." *Williams v. Rhodes*, 393 U.S. 23, 31 (1968) (citation omitted); *see also Reynolds v. Sims*, 377 U.S. 533, 562 (1964) (noting the right to vote is a fundamental political right because it is preservative of all other rights).

8. Secretary Evnen's actions have dramatically upended two decades of election law less than four months before the November 2024 General Election. He has justified denying thousands of Nebraskans the right to vote based on a so-called violation of separation of powers. But, in fact, it is Secretary Evnen who has violated the separation of powers by usurping the authority of the courts to declare what is and is not constitutional, as well as the power of the Legislature to make law on behalf of constituents to whom they

are accountable. Instead, Secretary Evnen has unlawfully attempted to aggrandize the Board of Pardons—a board whose members are the Governor, the Attorney General, and the Secretary himself. Neb. Const. art. IV, § 13.

9. "It is emphatically the province and duty of the judicial department to say what the law is." *Neb. Coal. for Educ. Equity & Adequacy* (*Coal.*) *v. Heineman*, 273 Neb. 531, 546, 731 N.W.2d 164, 176 (2007) (quoting *Marbury v. Madison*, 5 U.S. 137, 177 (1803)). And indeed, Nebraska law is clear that "[n]o legislative act shall be held unconstitutional except by the concurrence of five judges." Neb. Const. art. V, § 2; *see also Jaksha v. State*, 241 Neb. 106, 133, 486 N.W.2d 858, 875 (1992) ("[I]t is the duty of the judicial branch of our government to determine whether an act of the Legislature contravenes the provisions of the Constitution."). The Executive Branch thus cannot refuse to enforce a law passed by the Legislative Branch based solely on its unilateral determination that the law is unconstitutional. *See* Neb. Rev. Stat. § 84-731 ("the Governor . . . shall immediately . . . commence implementation" of a statute "unless," at the very least, "an action challenging the constitutionality of the act is pending . . .").

10. Secretary Evnen's attempt to assume the judiciary's role to assess the constitutionality of statutes passed by the Nebraska Legislature and relied on by voters for decades, and to unilaterally refuse to enforce such statutes, violates these fundamental principles and is plainly unlawful.

11. Secretary Evnen's basis is also plainly wrong. L.B. 20 and L.B. 53 were validly enacted legislation and the Nebraska Legislature has the power to restore voting rights through statute. *See Ways v. Shively*, 264 Neb. 250, 255, 646 N.W.2d 621, 626 (2002). Nearly all states in the country have pardon or clemency powers vested in the executive while simultaneously permitting state legislatures to pass laws governing automatic voting rights restoration.

12. A writ of mandamus is urgently needed ahead of the upcoming November 2024 General Election to redress this violation of

Nebraska law and prevent the disenfranchisement of thousands of eligible Nebraska voters.

JURISDICTION AND VENUE

13. The Court has original jurisdiction over this matter pursuant to Neb. Const. art. V, § 2 and Neb. Rev. Stat. § 24-204, as Relators seek writs of mandamus.

PARTIES

A. Relators

TJ King

14. Relator, John T.J. (TJ) King, is a resident and citizen of Omaha in Douglas County, Nebraska.

15. King is over eighteen years old, has not been held to be *non compos mentis* and has never been convicted of treason.

16. King is a qualified voter pursuant to Neb. Rev. Stat. §§ 32-313, 32-110 and would register to vote in the November 2024 General Election if legally permitted.

17. King was born in Lincoln, Nebraska and has lived almost his entire life in Nebraska. King has devoted his career to community advocacy and engagement but because of Respondents' failure to comply with the law, is not able to participate in our democratic process through voting.

18. Prior to being disenfranchised, King voted in elections and was proud to do so. King was previously registered as a Democrat and if eligible to vote, would register to vote as a Democrat again and cast his ballot in the November 2024 General election.

19. Between 1993 and 2016, King was convicted of one or more felonies under state law across three states.

20. As of September 21, 2022, King has completed all terms of his sentences.

21. The Nebraska Board of Pardons cannot pardon King's convictions in Florida and Iowa. Those convictions can only be pardoned by the pardon and clemency laws of their respective states. *See* Neb. Const. art. IV, § 13.

22. King has paid all legal financial obligations associated with all of his sentences.

23. King is not currently serving a sentence for any felony conviction in any jurisdiction.

Gregory Spung

24. Relator, Gregory Spung, is a resident and citizen of Omaha in Douglas County, Nebraska.

25. Spung was born in Omaha and has lived in Nebraska his entire life.

26. Spung is over eighteen years old, has never been held to *non compos mentis*, and has never been convicted of treason.

27. Spung is an eligible voter pursuant to Neb. Rev. Stat. §§ 32-313 and 32-110.

28. Prior to being disenfranchised, Spung regularly exercised his right to vote and was enthusiastic about doing so. After the passage of L.B. 20, Spung was excited to have his voting rights restored and vote again.

29. On or about July 18, 2024, Spung submitted an application to register to vote on the Secretary of State's website believing he was eligible to vote. On or about that same day and upon learning of Secretary Evnen's action to refuse voting rights to those with felony convictions, Spung submitted an email to the Douglas County Election Commissioner requesting to withdraw his voter registration application out of concern and fear of criminal liability for election falsification. On July 28, 2024, Spung received notice from the Douglas

County Election Commission that "based upon [his] request, and with all due consideration" they will honor Spung's request to withdraw his registration application. In his application, Spung requested to register as Nonpartisan.

30. If allowed to register to vote, Spung intends to register as Nonpartisan and vote in the November 2024 General Election.

31. In 2022, Spung pled guilty to a felony conviction. On March 9, 2023, Spung was discharged early from his term of probation, completing all terms of his sentence related to his felony conviction.

32. Spung paid all legal financial obligations related to his conviction.

33. Spung is not currently serving a sentence for any felony conviction in any jurisdiction.

Jeremy Jonak

34. Relator, Jeremy Jonak, is a resident and citizen of Wood River in Hall County, Nebraska.

35. Jonak was born in Saint Paul, Nebraska and has lived in Nebraska his entire life.

36. Jonak is over eighteen years old, has not been held to be *non compos mentis* and has never been convicted of treason.

37. Jonak is a qualified voter pursuant to Neb. Rev. Stat. §§ 32-313 and 32-110.

38. Prior to being disenfranchised, Jonak exercised his right to vote and was proud to do so.

39. Jonak was excited to get his right to vote back upon completing his sentence so that he could vote in the November 2024 General Election as a registered Republican.

40. On December 11, 2019, Jonak pled no contest to a felony conviction under Nebraska law. On January 5, 2022, Jonak was

released from probation and completed all terms of his sentence related to that conviction.

41. In August of 2020, Jonak pled guilty to a federal felony conviction.

42. On April 7, 2022, Jonak was sentenced to three years of probation.

43. On April 19, 2024, Jonak was released early from his probation. At that point, Jonak had completed all terms of his sentence.

44. Jonak paid all legal financial obligations related to his sentences.

45. Jonak is not currently serving any sentence for any felony conviction in any jurisdiction.

46. Jonak's federal conviction cannot be pardoned by the Nebraska Board of Pardons. *See* Neb. Const. art. IV, § 13.

Civic Nebraska

47. Relator, Civic Nebraska, is a registered nonpartisan nonprofit corporation organized under the laws of Nebraska with offices located in Lincoln, Nebraska.

48. Civic Nebraska's mission is to create a more modern and robust democracy for all Nebraskans by educating voters, providing guidance to Nebraskans about registering to vote, and registering voters.

49. Civic Nebraska is required by law to use voter registration forms issued by Secretary Evnen and uses the forms to further their mission. *See* Neb. Rev. Stat. § 32-320.01.

50. As discussed in greater detail below, Civic Nebraska has been forced to divert money, staff time, and resources away from its other core activities as a result of Secretary Evnen's unlawful directive.

B. Respondents

51. Respondent Robert Evnen serves as the Secretary of State, Nebraska's chief election official and is prescribed to "enforce the election act," "supervise the conduct of primary and general elections in this state," and "provide training and support for election commissioners, county clerks, and other election officials in providing for day-to-day operations of the office, registration of voters, and the conduct of elections." Neb. Rev. Stat. § 32-202; *accord* Neb. Rev. Stat. §§ 32-101 to 32-1552. Secretary Evnen is sued in his official capacity.

52. Respondent Brian W. Kruse serves as the Douglas County Election Commissioner and is "responsible for the enforcement of the Election Act as it relates to his... office and for the competency, integrity, and conduct of his... chief deputy election commissioner and all personnel appointed by him..." Neb. Rev. Stat. § 32-214; *accord* Neb. Rev. Stat. §§ 32-101 to 32-1552. Respondent Kruse is sued in his official capacity.

53. Respondent Tracy Overstreet serves as the Hall County Election Commissioner and is "responsible for the enforcement of the Election Act as it relates to...her office and for the competency, integrity, and conduct of ...her chief deputy election commissioner and all personnel appointed by ... her." Neb. Rev. Stat. § 32-214; *accord* Neb. Rev. Stat. §§ 32-101 to 32-1552. Respondent Overstreet is sued in her official capacity.

FACTS

A. Background on L.B. 20

54. In 2005, the Nebraska Legislature passed L.B. 53, which ended permanent felony disenfranchisement in the state. Legis. B. 53, 99th Leg., 1st Sess. (Neb. 2005). L.B. 53 restored Nebraskans' right to vote two years after completion of a felony sentence, including any parole. *Id.*

55. The re-enfranchisement of Nebraskans formerly convicted of felonies means more than just the ability to cast a vote. Rather, the restoration of one's voting rights has been shown to reduce recidivism, increase community engagement, and foster reintegration into the community following a felony conviction.

56. After the passage of L.B. 53, lawmakers, voting rights advocates including Relator Civic Nebraska, and Nebraska citizens then began laying the groundwork for their next legislative effort: removing the two-year waiting period. Over the next nineteen years, they formed coalitions, engaged in bipartisan dialogue, and educated the community about the benefits of civic engagement for Nebraskans re-entering the community after a felony conviction. Nate Jenkins, *Effort Under Way to get Ex-felons Registered to Vote*, Lincoln J. Star (Sept. 11, 2005), https://journalstar.com/news/local/effort-under-way-to-get-ex-felons-registered-to-vote/article_75945fad-fbea-51b6-9975-21911ed8bfe3.html, Exhibit 4.

57. At the time of L.B. 53's passage, approximately 59,000 Nebraskans had their voting rights restored pursuant to L.B. 53. Ex. 4.

58. Over the past two decades, Nebraska citizens who have completed the terms of their felony sentences have relied on the rights restoration scheme set out by L.B. 53 to register to vote, vote, and otherwise rejoin the democratic process. Logan Seacrest, Legis. Rsch. Off., *Prisoner Reentry FAQ* 2 (2014), https://www.nebraskalegislature.gov/pdf/reports/research/prisonerreen tryfaq2014.pdf, Ex. 5.

59. Since the passage of L.B. 53, approximately 38,000 more voters have been re-enfranchised since 2005.

60. On April 11, 2024, the Nebraska Legislature overwhelmingly passed L.B. 20 in a bipartisan, 38-6 vote. Legis. J., 108th Leg., 2d Sess. 1700-01 (Neb. 2024). L.B. 20 restores voting rights to Nebraskans convicted of a felony immediately upon completion of their sentence, including any parole, eliminating the two-year wait period in L.B. 53.

Compare Legis. B. 20, 108th Leg., 2d. Sess. (Neb. 2024) *with* Legis. B. 53, 99th Leg., 1st Sess. (Neb. 2005).

61. While Governor Jim Pillen declined to sign L.B. 20, it became law without his signature with an effective date of July 19, 2024. *See* Neb. Const. art. IV, § 15.

B. Attorney General Hilgers's Opinion and Secretary Evnen's Directive

62. On July 17, 2024, nearly three months after the bill was passed into law and less than forty-eight hours before the legislation was to take effect on July 19, 2024, Attorney General Hilgers published a nonbinding opinion stating that L.B. 20 unconstitutionally restores voting rights to Nebraskans with felony convictions in violation of article IV, section 13 of the Nebraska Constitution. In his view, only the Board of Pardons — comprised of himself, Secretary Evnen, and Governor Pillen — has that authority. *See* Neb. Const. art. IV, § 13.

63. Attorney General Hilgers has determined that *no Nebraskan* convicted of a felony offense—no matter how old the conviction, or how many times they have lawfully voted since 2005— can lawfully vote without a pardon from the Board of Pardons. This opinion would, therefore, affect not just L.B. 20 but also L.B. 53, which has restored voting rights to tens of thousands of Nebraska voters over the past two decades. *See* Ex. 5 at 2.

64. And yet, Secretary Evnen issued a press release indicating he is interpreting the Attorney General's opinion as binding law. In the press release, Secretary Evnen represented that he is "directing county election offices to stop registering individuals convicted of felonies who have not been pardoned by the Nebraska Board of Pardons." Ex. 2; *accord* Ex. 3.

65. Neither Attorney General Hilgers' opinion nor Secretary Evnen's statement specify any legal basis for how a non-binding Attorney General opinion can overturn and invalidate laws passed by a democratically elected legislature—especially when it is emphatically

the province of the *judicial* branch to say whether a law is constitutional or not. *See* Neb. Const. art. V, § 2.

66. It is axiomatic that only the judiciary has the authority to invalidate a statute as unconstitutional or otherwise unlawful. This is plain from the Nebraska Constitution itself, which makes clear that "[n]o legislative act shall be held unconstitutional except by the concurrence of five judges." Neb. Const. art. V, § 2; *see also Jaksha v. State*, 241 Neb. 106, 133, 486 N.W.2d 858, 875 (1992).

67. In fact, the Nebraska Supreme Court has already held that the Legislature has the power to restore the right to vote, stating and that the "[r]estoration of the right to vote is implemented through statute." *Ways v. Shively*, 264 Neb. 250, 255, 646 N.W.2d 621, 626 (2002).

68. And even more specifically, the Nebraska Supreme Court has found that "an Attorney General's opinion . . . has no controlling authority on the state of the law discussed in it, . . . [a]n Attorney General's opinion is, simply, not a judicial utterance." *State v. Coffman*, 213 Neb. 560, 561, 330 N.W.2d 727, 728 (1983).

69. To the extent the Executive Branch believes a law to be unconstitutional, it must seek relief before the judiciary; it cannot refuse to enforce a law based solely on a unilateral finding of unconstitutionality. *See* Neb. Rev. Stat. § 84-731 ("the Governor . . . shall immediately . . . commence implementation" of a statute "unless," at the very least, "an action challenging the constitutionality of the act is pending . . .").

70. The Secretary's decision to treat the Attorney General's opinion as binding law and his refusal to enforce duly passed statutes thus violate the plain text of the Nebraska State Constitution and Nebraska statute, as well as binding holdings from the Nebraska Supreme Court. It must end now.

C. Respondent's Legal Duty

Secretary of State

71. Nebraska law provides that the Secretary of State *must* prescribe a voter registration form that states: "[t]o the best of my knowledge and belief, I declare under penalty of election falsification that: . . . I have not been convicted of a felony; *or if convicted, I have completed my sentence for the felony, including any parole term*." Neb. Rev. Stat. §§ 32-312, 32-311.01 (emphasis added). This statute was updated after L.B. 20 was passed and is the law of Nebraska.

72. In contravention of the Re-enfranchisement Statutes and his duty as Secretary of State, Secretary Evnen unilaterally changed the voter application oath. A copy of the voter registration form currently being utilized by the Secretary of State is attached as Exhibit 6. Secretary Evnen unilaterally changed the voter application oath to read: "I have not been convicted of a felony or, if convicted, *my civil rights have been restored.*" Ex. 6 (emphasis added). Secretary Evnen has directed county elections to use forms and to register voters which utilize language in violation of the Re-enfranchisement Statutes. *See* Ex. 3.

73. Secretary Evnen has a legal duty to provide the correct voter registration form pursuant to Nebraska law. Neb Rev. Stat. §§ 32-312, 32-311.01.

74. Also part of his "duties prescribed by law, the Secretary of State shall . . . [e]nforce the Election Act." Neb. Rev. Stat. § 32-202(3); *accord* Neb. Rev. Stat. §§ 32-101 to 32-1552. Pursuant to the Election Act, an elector previously disqualified due to a felony conviction is eligible to vote when their "sentence is completed": "[t]he disqualification is *automatically* removed at such time." Neb. Rev. Stat. § 32-313(1) (emphasis added).

75. Contrary to Secretary Evnen's duty to automatically remove an individual's disqualification upon completion of their felony conviction, Secretary Evnen directed all county commissioners via

email correspondence to send any pending registrations dated on or after July 18 with a felony conviction a "new felon suspension notice" and be "made ineligible" for voter registration. *See* Ex. 3.

76. The Secretary's failure to perform this *automatic* removal of disqualification for voters that have completed the terms of their sentence is a violation of his duty under Neb. Rev. Stat. §§ 32-202(3), 32-313(1). *Accord* Neb. Rev. Stat. §§ 32-101 to 32-1552; *see* Exs. 2, 3.

Election Commissioner

77. The Election Act provides that election commissioners "shall provide for the registration of the electors of the county." Neb. Rev. Stat. § 32-301(2). After receiving "a voter registration application from an eligible elector, . . . [the election commissioner] shall enter the information from the application in the voter registration register . . . ." Neb. Rev. Stat. § 32-301(2); *see also* Neb. Rev. Stat. §§ 32-311.01(1) ("Every election commissioner or county clerk shall accept [an application to register to vote]"), 32-322.

78. After receiving a voter registration application, the Election Commissioner "will . . . send an acknowledgment of registration to the applicant indicating whether the application is proper or not." Neb. Rev. Stat. §§ 32-304(d), 32-311.01(2)(e), 32-322.

D. Relator's Legal Right

79. Secretary Evnen's actions have already resulted in eligible voters being denied their right to register to vote, including Relators King, Jonak, and Spung, and denied Relator Civic Nebraska's ability to register voters.

King and Spung

80. Being qualified voters under Nebraska statutes, King and Spung have a clear legal right to participate in upcoming elections. Neb. Rev. Stat. §§ 32-313, 32-110.

81. King and Spung have a clear legal right to register as a voter in Nebraska and be placed on the voter registration register under the Re-enfranchisement Statutes.

82. To vote in Nebraska, King and Spung must first register as a voter with the Secretary of State's Office. King and Spung can apply to register to vote in person at the Douglas County Election Commission. Neb. Rev. Stat. § 32-311.

83. Although King and Spung have completed all terms of their sentences, the Douglas County Election Commissioner would not be able to register them to vote under the Secretary of State's guidance because of their past felony convictions.

84. King and Spung have a right to register as a voter under the correct voter registration form prescribed by the Secretary of State and made available by the Douglas County Election Commissioner showing that they are a qualified voter. Neb. Rev. Stat. §§ 32-312, 32-311.01, 32-313, 32-110.

85. King and Spung have a right to a voter registration form that reflects Nebraska law which provides that the Secretary of State *must* prescribe a voter registration form that states: "To the best of my knowledge and belief, I declare under penalty of election falsification that: . . . I have not been convicted of a felony; *or if convicted, I have completed my sentence for the felony, including any parole term.*" Neb. Rev. Stat. §§ 32-312, 32-311.01 (emphasis added). This statute was updated after L.B. 20 was passed and is the law of Nebraska.

86. Secretary Evnen is not providing the form required by law and instead unilaterally changed the voter application oath to read: "I have not been convicted of a felony or, if convicted, *my civil rights have been restored.*" Ex. 6 (emphasis added). Should King and Spung register to vote, they will be provided forms using an oath in violation of the Re-enfranchisement Statutes, causing them to run the risk of being charged with election falsification, which is a Class IV felony under Nebraska law. Neb. Rev. Stat. § 32-1502.

Jonak

87. Jonak is a resident and citizen of Hall County, Nebraska. Jonak has a clear right to a correct voter registration form from the Hall County Election Commissioner.

88. Being a qualified voter under Nebraska statutes, Jonak has a clear legal right to participate in upcoming elections. Neb. Rev. Stat. §§ 32-313, 32-110.

89. As a qualified voter and pursuant to the Re-enfranchisement Statutes, Jonak has a clear legal right to register to vote in Nebraska and to be placed on the voter rolls. Neb. Rev. Stat. §§ 29-112, 29-113, 32-313, 32-1530, 29-2264, 32-3312, and 83-1,118.

90. To vote in Nebraska, Jonak must first register as a voter with the Secretary of State's Office. Under Nebraska statute, Jonak is permitted to register in person at his county election office. Neb. Rev. Stat. § 32-311.

91. On July 19, 2024—the day that L.B. 20 took effect — Jonak visited the Hall County Election Commission in-person to attempt to register to vote.

92. As the election commissioner in Hall County, Commissioner Overstreet has a nondiscretionary duty to provide for the registration of electors of the county, to enter the information from a voter registration application in the voter registration register upon receipt, and to send an acknowledgment of registration to the postal address shown on the registration application. Neb. Rev. Stat. §s 32-301(2), 32-302, 32-322.

93. Although Jonak meets all of the qualifications to register to vote under Nebraska law, Commissioner Overstreet refused to accept Jonak's voter registration applications, citing Attorney General Hilgers' opinion and the directive from Secretary Evnen.

94. When Commissioner Overstreet refused to accept Jonak's voter registration application, Commissioner Overstreet provided

Jonak a letter explaining the reason for her rejection. The letter is attached as Exhibit 7 and states:

> Attorney General Hilger's opinion "concluded that LB20 passed by the Nebraska Legislature in 2024 and LB53 passed by the Nebraska Legislature in 2005 are unconstitutional," and that "Secretary Evnen has directed county election officials to stop registering individuals convicted of felonies who have not been pardoned by the Nebraska Board of Pardons."

95. Although Jonak has completed all terms of his sentence, under the Secretary of State's guidance, the Hall County Election Commissioner would not register him to vote because of his past felony convictions.

96. Jonak has a right to register as a voter under the voter registration form required by Nebraska statutes showing that he is a qualified voter. Neb. Rev. Stat. §§ 32-312, 32-311.01, 32-313, 32-110.

97. Jonak has a right to a voter registration form that reflects Nebraska law which provides that the Secretary of State *must* prescribe a voter registration form that states: "To the best of my knowledge and belief, I declare under penalty of election falsification that: . . . I have not been convicted of a felony; *or if convicted, I have completed my sentence for the felony, including any parole term.*" Neb. Rev. Stat. §§ 32-312, 32-311.01 (emphasis added). This statute was updated after L.B. 20 was passed and is the law of Nebraska.

98. Secretary Evnen is not providing the form provided under law and instead unilaterally changed the voter application oath to read: "I have not been convicted of a felony or, if convicted, *my civil rights have been restored.*" Ex. 6 (emphasis added).

99. Should Jonak register to vote, he will be provided a form using an oath in violation of the Re-enfranchisement Statutes, causing him to run the risk of being charged with election falsification, which is a Class IV felony. Neb. Rev. Stat. § 32-1502.

Civic Nebraska

100. Relator Civic Nebraska is required to use the voter registration applications distributed by the Secretary of State and often brings the applications to events, sends them in the mail, and emails the electronic link to the voter registration application to eligible voters. *See* Neb. Rev. Stat. § 32-320.01 (requiring organizations distributing voter registration forms by mail to use the form prescribed by the Secretary of State).

101. Secretary Evnen's mandate to election officials has created an environment of confusion and uncertainty just weeks before key election deadlines. Nebraskans face a risk of criminal prosecution if they fraudulently register to vote, as do those assisting them, including Civic Nebraska. *See* Neb. Rev. Stat. §§ 32-1502, 32-1503. The laws on the books in Nebraska —Neb. Rev. Stat. §§ 32-312 and 32-313—do not match the directive given by Secretary Evnen or the oath he has printed on voter registration applications.

102. Civic Nebraska is an organization whose core mission is to create a more modern and robust democracy through voter and civic education and participation, in large part by helping Nebraskans register to vote and vote. To that end, Civic Nebraska has spent significant resources in support of felony voting rights restoration. To support this mission, Civic Nebraska has a devoted staff person committed primarily to felony voter restoration outreach, coordination, and organizing.

103. Anticipating the Re-enfranchisement Statutes to take effect on July 19, 2024, Civic Nebraska spent the organization's resources and staff time planning and conducting outreach to new voters informing them of the anticipated change in the law. Civic Nebraska planned to host celebration events as soon as July 20, 2024 to invite new voters to register after the Re-enfranchisement Statutes took effect.

104. Since Secretary Evnen sent his directives to election commissioners across the state to halt compliance with the Re-

enfranchisement Statutes, Civic Nebraska had to immediately stop their outreach and organizing efforts to register voters impacted by the Re-enfranchisement Statutes. Civic Nebraska incurred even greater expenses and diversion of resources due to the required re-strategizing and re-organizing of their outreach efforts. Resources that would have gone to helping register new voters and inform new voters of the law to increase civic participation are now being devoted to informing Nebraskans and newly disenfranchised voters about Secretary Evnen's actions and that they could not rely on the Re-enfranchisement Statutes as expected. Civic Nebraska also had to spend resources to re-program the scheduled celebration events as opportunities for the community and impacted Nebraskans to gather and distribute information on the sudden new development.

105. Civic Nebraska has also had to expend resources to research and re-strategize their communications to donors and stakeholders because their outreach and organizing plans around the Re-enfranchisement Statutes had changed unexpectedly due to Secretary Evnen's actions.

E. Writs of Mandamus Sought

106. Relators seek a writ of mandamus requiring Secretary Evnen to prescribe voter registration forms which state: "[t]o the best of my knowledge and belief, I declare under penalty of election falsification that: . . . I have not been convicted of a felony; or if convicted, I have completed my sentence for the felony, including any parole term," in compliance with Neb. Rev. Stat. § 32-312.

107. Additionally, Relators seek a writ of mandamus requiring Secretary Evnen to automatically remove the disqualification of voters previously disqualified for a felony conviction upon completion of all terms of sentence, as required by Neb. Rev. Stat. §§ 32-202(3), 32-313(1). S*ee also* Neb. Rev. Stat. §§ 32-101, 29-112, 29-113, 32-313, 32-1530, 29-2264, 32-3312, 83-1,118.

108. Relators King and Spung seek a writ of mandamus requiring Commissioner Kruse to accept their voter registration forms, enter the information from their applications in the voter registration register, and mail them an acknowledgment of registration as required by Neb. Rev. Stat. §§ 32-301, 32-322.

109. Jeremy Jonak seeks a writ of mandamus requiring Commissioner Overstreet to accept his voter registration forms, enter the information from his applications in the voter registration register, and mail him an acknowledgement of registration as required by Neb. Rev. Stat. §§ 32-301, 32-322.

CLAIMS

FIRST CLAIM FOR RELIEF

Writ of Mandamus Requiring Secretary Evnen to Lawfully Prescribe Voter Registration Applications Pursuant to Neb. Rev. Stat. §§ 32-312, 32-311.01.

110. Relators incorporate enumerated paragraphs above as though set forth here in full.

111. All eligible voters who properly complete an application to be a registered voter "shall be a registered voter and the election commissioner or county clerk shall send . . . an acknowledgment." Neb. Rev. Stat. § 32-322.

112. Relators King, Jonak, and Spung have a clear right to be a registered voter as an eligible voter who properly completed the application to register to vote because they have "a direct interest in participating in the upcoming election that will be affected by the actions of the election commissioner which they challenge as unlawful." *State ex rel. Steinke v. Lautenbaugh*, 263 Neb. 652, 658, 642 N.W.2d 132, 138 (2002).

113. Respondent Secretary Evnen has a statutory duty to "supervise the conduct of primary and general elections in the state." Neb. Rev. Stat. § 32-202.

114. Respondent Kruse and Overstreet have a statutory duty to "provide for the registration of the electors" in their county. Neb. Rev. Stat. § 32-301(2).

115. Once an election commissioner receives a "complete and correct registration application showing that the registrant is qualified to be a registered voter pursuant to sections 32-312.01 to 32-312.05, the registrant shall be a registered voter and the election commissioner or county clerk shall send . . . an acknowledgment of registration to the registrant." Neb. Rev. Stat. § 32-322.

116. Respondents failed to fulfill their ministerial duty of supervising and registering electors by failing to comply with and the Re-enfranchisement Statutes, and registering Relator King, Jonak, and Spung to vote.

117. Relator Civic Nebraska is unable to fulfill its mission and plan to register new voters who would have been eligible to vote under the Re-enfranchisement Statutes.

118. Respondents failed to fulfill their ministerial duty to Relator Civic Nebraska by failing to provide registration forms that comply with the Re-enfranchisement Statutes. Neb. Rev. Stat. §§ 32-312; 32-311.01.

119. Relators have no other plain and adequate remedy available in the ordinary court of law. *State ex rel. Johnson v. Gale*, 273 Neb. 889, 895, 734 N.W.2d 290, 298 (2007).

120. A preemptory writ is proper because Relator's right to acceptance and acknowledgment of their registration application is clear and Respondents have no valid excuse in whether to register Relator to vote. Neb. Rev. Stat. § 25-2159.

121. A peremptory writ of mandamus is necessary to compel Respondents to lawfully prescribe voter registration applications as no other remedy at law adequately resolves the issue with the urgency necessary in an election year.

SECOND CLAIM FOR RELIEF

Writ of Mandamus Requiring Secretary Evnen to Effectuate the Automatic Removal of Disqualification of Eligibility for Electors Upon Completion of Terms of Sentence Pursuant to Neb. Rev. Stat. §§ 32-202, 32-313.

122. Relators incorporate enumerated paragraphs above as though set forth here in full.

123. As part of his "duties prescribed by law, the Secretary of State shall . . . [e]nforce the Election Act." Neb. Rev. Stat. § 32-202(3).

124. Under the Election Act, an elector who had previously been disqualified due to a felony conviction becomes eligible to vote when their "sentence is completed, including any parole term." Neb. Rev. Stat. § 32-313(1). "The disqualification [of the elector] is *automatically* removed at such time." *Id.* (emphasis added).

125. Respondent Secretary Evnen thus has a ministerial duty to perform this automatic removal of disqualification of voters who have completed the terms of their sentence. The Secretary's failure to perform this automatic removal of disqualification constitutes a violation of his ministerial duty.

126. The Secretary's failure to perform these ministerial duties directly harms Relators King, Spung, and Jonak, who have the legal right to be an eligible registered voter under Nebraska law.

127. Relators have no other plain and adequate remedy available in the ordinary court of law. *State ex rel. Johnson v. Gale*, 273 Neb. 889, 895, 734 N.W.2d 290, 298 (2007).

128. A peremptory writ is proper because Relators King, Spung, and Jonak's right to acceptance and acknowledgment of the act is clear

and Respondent Secretary Evnen have no discretion in whether to remove Relators King, Spung, and Jonak's disqualification to register to vote. *See* Neb. Rev. Stat. § 25-2159.

THIRD CLAIM FOR RELIEF

Writ of Mandamus Requiring Election Commissioners Tracy Overstreet and Brian Kruse to Register Relators King, Spung, and Jonak as Qualified Voters Pursuant to Neb. Rev. Stat. §§ 32-301, 32-322.

129. Relators incorporate enumerated paragraphs above as though set forth here in full.

130. Relators King, Spung, and Jonak are qualified voters under Nebraska law.

131. Relators have a legal right to be an eligible registered voter under Nebraska law.

132. The duty to register voters is held by county election commissioners. "The election commissioner or county clerk shall provide for the registration of the electors of the county." Neb. Rev. Stat. § 32-301(2).

133. "Every election commissioner or county clerk shall accept such an application for registration." Neb. Rev. Stat. § 32-311.01.

134. Election Commissioners Kruse and Hall have a duty to register voters upon their application:

> "Upon receipt by the election commissioner or county clerk of a complete and correct registration application showing that the registrant is a qualified to be a registered voter pursuant to sections 32-312.01 to 32-312.05, the registrant *shall be a registered voter* and the election commissioner or county clerk shall send, by nonforwardable first-class mail, an acknowledgment of registration to the registrant at the postal address shown

on the registration application." Neb. Rev. Stat. § 32-322 (emphasis added).

135. As county election commissioners, Respondents Overstreet and Kruse have a duty to register Relators King, Spung, and Jonak in their respective counties.

PRAYER FOR RELIEF

WHEREFORE, Relators respectfully requests that the Court grant relief as follows:

1. That the Court advance this matter on the docket, issue a briefing schedule as soon as possible, and hear and decide this matter in an expedited manner due to the necessity of adjudication before upcoming election deadlines ahead of the November 2024 General Election;

2. That the Court issue a writ of mandamus requiring Respondent Secretary Evnen to prescribe voter registration applications that comply with Neb. Rev. Stat. §§ 32-312, 32-311.01;

3. That the Court issue a writ of mandamus requiring Respondent Secretary of State Robert Evnen to effectuate the automatic removal of disqualification of eligibility for persons who have completed all terms of their felony sentences, including Relators King, Spung, and Jonak pursuant to Neb. Rev. Stat. §§ 32-202, 32-313;

4. That the Court issue a writ of mandamus requiring Douglas County Election Commissioner to accept Relators TJ King's and Gregory Spung's voter registration forms, enter the information from their applications in the voter registration register, and mail them an acknowledgement of registration as required by Neb. Rev. Stat. §§ 32-301, 32-322;

5. That the Court issue writ of mandamus requiring Hall County Election Commissioner Tracy Overstreet to accept Relator Jeremy Jonak's voter registration forms, enter the information from their

applications in the voter registration register, and mail him an acknowledgement of registration as required by Neb. Rev. Stat. §§ 32-301, 32-322;

6. That the Court award Relators costs and reasonable attorney's fees pursuant to Neb. Rev. Stat. § 25-2165 or as otherwise permitted by Nebraska Law; and

7. For such other and further relief as is appropriate at law and equity and the court deems proper.

DATED this 29th day of July, 2024.

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GREGORY SPUNG, Relator
JEREMY JONAK, Relator
CIVIC NEBRASKA, Relator,

By: /s/Jane Seu

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